

Regulatory applicability assessment

EU AI Act and UAE regulatory context | AI-enabled recruitment screening

PURPOSE OF THIS DOCUMENT

Assess whether selected legal and policy instruments are relevant to the fictional use case, distinguish binding obligations from policy principles, identify unresolved facts, and translate applicability into an evidence plan.

Document control	Detail
Organisation	GulfTalent Services PJSC (fictional)
Use case ID	AI-UC-001
Assessment ID	REG-001
Assessment status	Preliminary / fact-dependent
Business owner	Chief Human Resources Officer
Assessment owner	Legal and AI Governance
Version and date	Version 1.0 17 September 2026
Source artefacts	Documents 1–3: registration, impact assessment and risk register

1. Executive conclusion

PRELIMINARY CONCLUSION

UAE privacy requirements are relevant to the processing of applicant personal data. UAE responsible-AI policy principles provide an important governance benchmark. EU AI Act applicability cannot be concluded from UAE headquarters alone; it depends on territorial facts and operator roles. If the Act applies, this ranking and shortlisting use case is strongly indicative of an Annex III high-risk employment system.

Question	Preliminary assessment
Is this a final legal opinion?	No. This is a portfolio-grade preliminary assessment requiring qualified legal validation.
Does the UAE context matter?	Yes. Applicant data processing creates privacy and data-governance obligations; the exact regime may depend on establishment, free-zone status and processing facts.
Does the EU AI Act automatically apply because candidates may be European?	No conclusion is made on that basis alone. Article 2 territorial and operator-role facts must be confirmed.
If the EU AI Act applies, is the use likely high-risk?	Yes, subject to final classification. The system ranks and filters natural persons for recruitment and materially influences shortlisting.
Can the organisation rely on human review to avoid high-risk classification?	Not automatically. The scenario assumes scores and rankings materially influence selection; meaningful human review remains a required safeguard.
Immediate action	Confirm territorial scope and roles, vendor facts, data locations, applicant locations and decision flow before completing the compliance mapping.

2. Facts required for applicability

Fact question	Why it matters	Current case assumption / status
Where is the employer or deployer established?	Helps identify applicable UAE or EU territorial rules.	UAE-headquartered; exact legal entity and free-zone status not specified.
Where is the provider established and where is the system placed on the market?	Relevant to EU AI Act provider scope and contractual allocation.	Third-party provider not yet selected.
Where are system outputs used?	EU AI Act Article 2 includes third-country providers and employers where output is used in the Union.	UAE use assumed; EU use not confirmed.

Where are affected persons located?	relevant to territorial analysis and privacy obligations.	applicants may be in other jurisdictions; locations not confirmed.
Who determines intended purpose and substantial modifications?	may affect whether the organisation is a deployer, provider or assumes provider obligations.	Organisation intends to procure and deploy; modification rights are unknown.
Does the system only parse CVs, or does it rank and recommend?	narrow procedural tools may be treated differently from systems materially influencing selection.	Ranking and recommendations materially influence recruiter attention.
Does it perform profiling?	profiling affects the Article 6 classification analysis.	to be determined from system design and vendor documentation.
What personal and sensitive data is processed?	determines privacy, fairness and data-governance requirements.	CV and application data; inferred or sensitive data unknown.

3. Regulatory landscape

Instrument	Nature	Preliminary relevance to case
EU Artificial Intelligence Act, Regulation (EU) 2024/1689	binding EU regulation where its scope applies.	fact-dependent territorial applicability; likely high-risk classification if applicable.
UAE Federal Decree-Law No. 45 of 2021 on Personal Data Protection	binding UAE federal law, subject to its scope and exclusions.	relevant to electronic processing of applicant personal data, including security, data-subject rights and cross-border transfers.
UAE Charter for the Development and Use of Artificial Intelligence	national policy charter / governance principles.	relevant benchmark for responsible use, privacy, safety, bias, transparency, human oversight, governance and accountability.
Dubai AI Ethics Principles and Guidelines	non-mandatory ethics guidance for public and private sectors.	potential supplementary benchmark if relevant to the organisation or deployment context.
Employment, discrimination and sector-specific requirements	potentially binding laws and rules depending on facts.	separate qualified review is required; this portfolio assessment does not assert a complete UAE employment-law position.

4. EU AI Act classification analysis

Classification step	Assessment	Preliminary result
1. AI system	The proposed tool processes inputs and generates scores, rankings or recommendations with potential influence on decisions.	Treat as an AI system for preliminary assessment.
2. Territorial scope	Article 2 includes EU providers and deployers and certain third-country providers or deployers where output is used in the Union.	Unresolved. Confirm provider, deployer, location and output-use facts.
3. Prohibited-practice screen	The registered scope excludes emotion recognition, biometric categorisation and autonomous rejection.	No prohibited practice identified from current facts; reassess if scope changes.
4. Annex III employment use	The system is intended to analyse, filter, score and rank candidates for recruitment.	Matches the employment recruitment and selection use-case pattern.
5. Article 6(3) filter	The system does more than a narrow administrative task and materially influences which candidates receive attention.	Exception is unlikely on the stated facts; profiling status must also be confirmed.
6. Role allocation	The employer is expected to deploy a third-party system; provider duties remain with the provider unless facts or modifications alter roles.	Preliminary deployer role; contractual and technical facts required.
7. Classification	EU territorial scope applies, the system is strongly indicative of an Annex III high-risk AI system.	Preliminary High-Risk; legal validation required.

WHY HUMAN REVIEW DOES NOT END THE ANALYSIS

Official EU examples treat automated job-matching and ranking as high-risk where scores and rankings serve as a primary input to shortlisting, even when recruiters may review or override recommendations. The material influence of the output is central to this case.

5. Indicative EU AI Act obligations mapping

Workstream	Reference	Primary role	Requirement theme	Indicative evidence	Use gap
Risk management	Articles 8–9	Provider	Lifecycle risk system; identify, evaluate, mitigate and test risks.	Risk-management procedure, risk file, testing and approvals	Provider evidence required; deployer should view and operate within instructions.
Data and data governance	Article 10	Provider	Training, validation and test datasets subject to appropriate governance and quality practices.	Data specifications, provenance, quality, representativeness and bias testing	Unknown; request vendor evidence.
Technical documentation	Article 11 and Annex IV	Provider	Maintain documentation demonstrating system design and compliance.	Technical file, intended purpose, architecture, performance and limitations	Unknown; contract for access to relevant evidence.
Record keeping	Article 12	Provider / Deployer	Enable automatic logging appropriate to the system and retain logs as required.	Logging specification, access, retention and review records	Not designed.
Transparency and instructions	Article 13	Provider; used by deployer	Provide sufficient information for deployers to interpret output and use the system appropriately.	Instructions, limitations, performance, oversight and maintenance information	Unknown.
Human oversight	Article 14 and deployer duties	Provider and deployer	Design and implement effective oversight by competent, trained and authorised persons.	Overnight SOP, training, override, stop-use and monitoring evidence	Planned but not evidenced.
Accuracy, robustness and cybersecurity	Article 15	Provider; deployer operates accordingly	Achieve appropriate levels and address errors, silence and security.	Acceptance criteria, validation, robustness and security testing	Unknown.
Quality management and provider duties	Articles 16–17	Provider	Comply with provider obligations and maintain a quality management system.	IMS, accountability framework, procedures and records	Provider not selected.
Employer use and monitoring	Article 26	Employer	Follow instructions, assign oversight, ensure relevant input-data controls and monitor operation	Employment SOP, competent users, logs, monitoring and incident escalation	Not to be designed.
Conformity, declaration, CE marking and registration	Relevant high-risk provisions	Provider	Complete applicable pre-market steps and registration.	Conformity assessment, declaration, CE evidence and database registration	Provider evidence required.
Post-market monitoring and corrective action	High-risk lifecycle provisions	Provider / Deployer cooperation	Monitor performance and address incidents or non-compliance.	Monitoring plan, complaints, incidents, corrective action and change records	Not to be designed.

6. UAE privacy and responsible-AI mapping

IAE theme	Application to recruitment use case	Evidence or action required
Personal-data governance	Applicant CVs and applications are processed electronically; the federal UAE platform describes controls, company obligations, confidentiality and privacy.	Confirm applicable legal regime, processing grounds, purposes, notices and governance responsibilities.
Accuracy and correction	The official UAE platform states that individuals may request correction of inaccurate personal data and restriction or stopping of processing.	Provide correction and complaint routes; ensure corrected data can flow to the recruitment system.
Security and confidentiality	The UAE platform describes obligations to secure personal data and maintain confidentiality and privacy.	Security assessment, access controls, encryption, logging and incident response.
Cross-border transfers	The UAE platform states that the law sets requirements for cross-border transfer and sharing for processing.	Map data locations, vendor and subprocessors; complete transfer assessment and contractual controls.
Algorithmic bias	The UAE Charter emphasises addressing algorithmic bias and fair, equitable and inclusive access.	Fairness review, representative testing, threshold approval and remediation.
Transparency	The Charter seeks clear understanding of how AI operates and makes decisions.	Candidate notice, reviewer guidance, reason formation and explanation design.
Human oversight	The Charter emphasises human judgment and oversight to correct errors or bias.	Meaningful review, authority to override and stop use, training and decision records.
Governance and accountability	The Charter emphasises proactive governance, accountability, ethical and transparent use.	Named owners, decision rights, approval forum, monitoring and audit trail.

IMPORTANT LEGAL-SCOPE CAVEAT

The UAE has federal, free-zone and sector-specific legal contexts. The fictional organisation’s legal entity, establishment, applicant population, data location and processing arrangements must be confirmed before concluding which privacy and employment rules apply.

7. Regulatory action plan

Priority action	Owner	Output
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confirm entity, establishment, applicant and output-use locations.	Legal / HR	territorial scope memo.
confirm provider and deployer roles and any system modifications.	Legal / Technology / Procurement	role and responsibility matrix.
obtain vendor classification, technical and conformity evidence.	Procurement / AI Governance	vendor regulatory evidence pack.
complete UAE privacy applicability and processing assessment.	Privacy / Legal	approved privacy assessment and data-flow record.
validate EU high-risk classification if Article 2 scope is met.	EU legal counsel / AI Governance	signed classification assessment.
map final obligations to controls, owners and evidence.	AI Governance / Control owners	compliance obligations register.
align candidate notice, correction, complaint and human review.	HR / Legal	operational transparency and redress package.
establish regulatory-change and reassessment process.	Legal / AI Governance	horizon-scanning and change-control procedure.

8. Assessment conclusion and sign-off

RECOMMENDATION

Do not claim EU AI Act compliance or non-applicability until territorial scope, operator roles and provider evidence are confirmed. For portfolio purposes, show the use case as “EU AI Act high-risk if applicable” and treat UAE privacy governance as a required workstream.

Role	Decision / review status	Timeline and date
Business owner	Acknowledged / returned	Ongoing
Legal counsel	Applicability validated / further facts required	Ongoing
Privacy officer	UAE privacy scope validated / further facts required	Ongoing
AI Governance Lead	Obligations mapped / remediation opened	Ongoing
Procurement / Technology	Provider evidence received / incomplete	Ongoing

Sources and portfolio disclaimer

- EUR-Lex consolidated text of Regulation (EU) 2024/1689, version displayed 27 July 2026: <https://eur-lex.europa.eu/eli/reg/2024/1689/2026-07-27/eng>
- European Commission AI Act Service Desk, Employment examples: <https://ai-act-service-desk.ec.europa.eu/en/employment-0>
- European Commission AI Act Service Desk, High-Risk AI Systems: <https://ai-act-service-desk.ec.europa.eu/en/taxonomy/term/71>
- Official UAE Government Portal, Data protection laws: <https://u.ae/en/about-the-uae/digital-uae/data/data-protection-laws>
- Official UAE Government Portal, UAE Charter for the Development and Use of Artificial Intelligence: <https://u.ae/en/about-the-uae/strategies-initiatives-and-awards/policies/Ai/The-UAE-Charter-for-the-Development-and-Use-of-Artificial-Intelligence>

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